IN THE HIGH COURT OF BALOCHISTAN, QUETTA
Present:
* Hon'ble Mr. Justice Irfan Saadat Khan
* Hon'ble Mr. Justice Naeem Akhtar Afghan

Crl. Appeal No. 692/2016
Citation: PLD 2016 Lah 857
Matter ID: MAT-CRIM-2016-137

BETWEEN:
Muhammad Tariq Khan ... Appellant / Petitioner
VERSUS
Securities & Exchange Commission of Pakistan ... Respondent

LEGAL TOPIC: Criminal - Post Arrest Bail
STATUTES CITED: CrPC 1898, S. 497, S. 498, PPC 1860, S. 420, S. 489-F

JUDGMENT
1. This judgment disposes of Crl. Appeal No. 692/2016, directed against the final judgment rend ered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attor ney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Con stitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied i n CrPC 1898, S. 497 were disregarded, thereby causing grave miscarriage of justice. On the cont rary, learned counsel for the respondent defended the impugned judgment, asserting that full op portunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on rec ord clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under CrPC 1898, S. 497 and guaranteed fundamenta l rights, this petition is allowed. The impugned judgment is set aside and matter is remanded f or decision afresh on merits.

Decided on: 15 October 2016.